

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

July 22, 2019

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR – Marian J. Orr; COUNCIL MEMBERS – Rocky Case, Bryan Cook, Ken Esquibel, Pete Laybourn, Mike Luna, Dr. Mark Rinne, Scott Roybal, Dicky Shanor and Jeff White. Also present: Kris Jones, City Clerk. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda. Mr. White moved to approve, seconded by Mr. Roybal. Motion carried. Voting “yes” – all members of the governing body.

[CA] Minutes from Regular Meeting of the Governing Body on July 8, 2019. Motion (per Consent Agenda) carried.

Mr. Luna moved to approve payment of vouchers as presented, seconded by Mr. Case. Dr. Rinne declared a conflict and recused himself from discussion and voting. Motion carried. Voting “yes” – all members of the governing body with the exception of Dr. Rinne who didn’t vote.

ORDINANCE – 3rd READING – Amending Section 2.04.160(D), Readings-Committee Reports-Amendments, of Chapter 2.04, Mayor and City Council, of Title 2, Administration and Personnel, of the Code of the City of Cheyenne, Wyoming. Reporting for Finance Committee, Mr. White moved to approve on third and final reading, seconded by Mr. Case. Motion carried. Voting “yes” – all members of the governing body. (#4279)

ORDINANCE – 2nd READING – Pursuant to Sections 1.1.6, 1.1.7, and 2.4.1 of the Cheyenne Unified Development Code (UDC), amending Section 6.5.4.c to modify allowances for Electronic Message Centers. Reporting for Public Services Committee, Dr. Rinne moved to approve on second reading, seconded by Mr. Roybal. Motion carried. Voting “yes” – all members of the governing body.

ORDINANCE – 2nd READING – Pursuant to Section 2.2.2 Planned Development - Regulating Plan or Development Master Plan, Section 5.1.3 Official Zoning Map, and Section 5.6.2 PUD – Planned Unit Development District of the Unified Development Code, amending Ordinance No. 2975 and Ordinance No. 3297 by modifying certain standards of the adopted district, Planned Unit Development (PUD), for all of Block 596 and the westerly 40 feet of the vacated right of way of House Avenue between East 7th and 8th Streets, Original City of Cheyenne, Wyoming (located east of I-180 between 7th and 8th Streets). Dr. Rinne moved to

approve on second reading, seconded by Mr. Cook. Motion carried. Voting “yes” – all members of the governing body.

ORDINANCE – 2nd READING – Vacating all portions of non-vacated: alley, adjoining half-street right of way of 12th Street, and adjoining half-street right of way of Holmes Avenue; of Block 168, Interior Heights, 2nd Filing; and all of Center Drive west of the west line of Harmony Center 2nd Filing, City of Cheyenne, Laramie County, Wyoming (located north of and adjacent to West College Drive, west of Walterscheid Boulevard). Dr. Rinne moved to approve on second reading, seconded by Mr. Roybal. Motion carried. Voting “yes” – all members of the governing body.

ORDINANCE – 2nd READING – Pursuant to Sections 1.1.6 and 2.4.1 of the Cheyenne Unified Development Code (UDC), amending Section 1.4.4 and 5.1.4 of the UDC to clarify definitions for entertainment and recreation land uses; to create a new entertainment and recreation – Other Land Use; and to allow these uses in various zoning districts as administrative, conditional or principal permitted uses. Dr. Rinne moved to approve on second reading, seconded by Mr. Cook. Dr. Rinne moved to amend by adding conditional uses to AG, AR, RR zones for Entertainment Out Door, Entertainment Venue, Entertainment Amusement and Recreation Other, seconded by Mr. Cook. Motion to amend carried. Voting “yes” – all members of the governing body. Main motion as amended carried. Voting “yes” – all members of the governing body.

ORDINANCE – 2nd READING – Annexing to the City of Cheyenne, Wyoming, the three hundred foot (300’) wide right-of-way of U.S. Highway No. 30, situated in a portion of Sections 26, 27 and 34, Township 14 North, Range 66 West of the 6th P.M., Laramie County, Wyoming, (located between Cleveland Avenue and Hayes Avenue). Dr. Rinne moved to approve on second reading, seconded by Mr. Roybal. Motion carried. Voting “yes” – all members of the governing body.

ORDINANCE – 1st READING – Amending Chapter 8.64, Smoking in Public Places, within Title 8, Health and Safety, of the Municipal Code for the City of Cheyenne, Wyoming – referred to Public Services Committee.

RESOLUTION – Adopting a Comprehensive Open Data Policy as is Practical. Vicki Nemecek, Director of Public Works, advised the resolution and policy is a product of the StratOp action initiative plan Collect and Utilize Data. She provided information on open data, affiliated software and confidentiality of sensitive records. Alessandra McCoy Fakelman, Deputy City Attorney, explained this is separate from the Wyoming Public Records Act and further advised that currently certain data must be requested from City departments. She reported that as this initiative progresses, citizens will be able to search data from an online portal, noting certain records requests will still need to be requested through a public records request. Dr. Rinne moved to adopt, seconded by Mr. Case. Dr. Rinne moved to amend Exhibit A by adding a Section 7 to read as follows: “Section 7: Budget (a) Council’s approval of this policy does not include funding. Specific projects and budgeting will be discussed at a later date”, seconded by Mr. Case. Motion to amend carried. Voting “yes” – all members of the governing body. Main motion as amended carried. Voting “yes” – all members of the governing body. (#6003)

[CA] RESOLUTION – Whereby the Governing Body of the City of Cheyenne authorizes a special Cheyenne Downtown Development Authority District Election to be held October 16, 2019 as provided by Wyo. Stat. §15-9-217 (5) which, upon affirmative majority vote of the Qualified Voters within the District, will authorize a Special Assessment of Twenty (20) Mills upon real property within the District, excluding real property used exclusively for residential purposes, for a period of four (4) years. Motion (per Consent Agenda) carried. (#6004)

[CA] RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for Harmony Valley, First Filing, a plat of a portion of the S1/2 of Section 7 and the SE1/4 NE1/4 of Section 7, T.13N., R.66W., 6th P.M., Cheyenne, Laramie County, Wyoming, (located north of and adjacent to W. College Drive, west of Walterscheid Boulevard) – referred to Public Services Committee. (Sponsor – Dr. Rinne)

Land Purchase and Sale Agreement between the City of Cheyenne and Victory Real Estate Management LLC, for the purchase of real property described as a portion of Lot 1, Block 1, P.A.S. Subdivision, City of Cheyenne, Laramie County, Wyoming, for the appraised value of \$329,630.00 for economic development purposes (General Fund Reserves). Alessandra McCoy Fakelman, Deputy City Attorney, advised staff has put together presentations for council to discuss some of the issues including access, Ice and Events Center signage and a proposed substitute. She discussed the issue relating to direct access outside of a blanket access agreement that was granted in 2007 when the Ice and Events Center was purchased, explaining the City is requesting an access easement that will better serve the Ice and Events Center and that access was never granted to the City as it was between the Hitching Post and Ice and Events Center. She provided further information on the Ice and Events Center sign that has not changed as the City doesn't own the property where the sign is located which causes UDC issues that can be addressed with an access agreement. Ms. McCoy Fakelman advised the proposed substitute will clear up clerical errors and contains edits including new legal description, moving of the Ice and Events Center sign and clarifies other concerns that arose during negotiations. Brendan Ames, Chief Economic Development Officer, explained the agreement addresses ownership, parking, proper lighting and improvements and will provide flexibility for the City to ensure future success of the property. Mr. Ames provided information on a future replat of the property, the property being eligible for the Brownfields Revolving Loan Fund, land adjacent to the property and economic impact related to developing the land. He reviewed similar land purchase scenarios in the state of which all include vacated property purchased by City entities and advised letters of intent from interested developers for the property have been submitted. Upon inquiry, Bruce Trembath, Chief Building Official, advised he has been in contact with various contractors related to efforts for stabilizing the property including parameter fencing, securing buildings and capping drainage for buildings 5 and 6 and provided cost estimates for each. He explained upon further inquiry fencing will be secured with posts driven into the ground. Teresa Moore, Director of Community Recreation and Events, provided information on developing the land, plans for the area including the Missile Drive Corridor plan, need to create a Cheyenne gateway, importance of the project, private investments for similar projects, possibility of Greenway connectivity, history of adjacent land and its current use and existing concerns. Charles Bloom, Director of Planning and Development, reported staff has talked to the EPA regarding the Brownfields Revolving Loan and provided info on matching grant funds and eligibility for the revolving loan fund to include all properties on the site. Upon

inquiry, Robin Lockman, City Treasurer, explained a separate fund would be required to be used only for purchasing property. Mr. Bloom, upon inquiry, advised an EPA grant is different than the revolving loan fund and only states, communities and tribes are eligible to apply for the grants and provided information on grant deadlines. Casey Palma, Steil Surveying, agent for the owner, reviewed project aspects including price of property, the importance of access, need to update previous access agreements, current signage (which is currently illegal) and negotiation with owner for a lien which will go back to the City when property sells for updates. He advised the owner has applied to the revolving loan fund to abate the front 2 buildings. Upon inquiry regarding the Hitching Post sign, Mr. Palma explained he has encouraged the owner to be amendable and provided different options for the sign. Mr. White moved to approve in an amount not to exceed \$329,630.00, seconded by Mr. Roybal. Mr. White moved to amend by substitute, seconded by Dr. Rinne. Motion to amend carried. Voting "yes" – all members of the governing body. Upon inquiry, Ms. Lockman provided information on available reserves which includes the second floor of the new Municipal Court building and provided information on the Capital Improvement plan. Further discussion continued and included: appraised value of Parcel A, costs affiliated with remediations needed for the property, paying more than appraised value of the property and importance of remediating the property. Mr. Shanor moved to amend section 7 (c) by replacing existing language with: "Seller agrees to contribute \$750,000 toward any remediation of Parcel A. Seller agrees to a \$750,000 promissory note and mortgage in favor of the Buyer which will be placed on Parcel B currently owned by Seller and not conveyed to Buyer by this agreement. Said promissory note and mortgage to be effective immediately upon Seller's sale of Parcel B. Other terms and conditions of promissory note and mortgage to be negotiated with Seller by the City Attorney's office", seconded by Mr. Cook. Mr. Palma commented on the amendment and the current owner's financial position. Further comments were made related to abatement estimates that were obtained through an RFP process by the current owner. Upon inquiry, Ms. McCoy Fakelman advised the City has not gone out for RFP's or RFQ's. Mr. Palma explained attachment C-1 is part of the owner's 2018 RFP. Discussion continued. Topics included: costs affiliated with remediation and demolition, grant opportunities and letters of intent. Mr. Shanor raised a point of order relating to a question posed regarding the owner's interest in moving forward with the sale agreement after the amendment. Mr. Palma advised remediations could possibly be paid for by alternative mechanisms. Mayor Orr and Ms. McCoy Fakelman provided information on the sale agreement and condemnation proceedings that are currently stayed before the Building Code Board of Appeals pending the decision on this land purchase tonight. Motion to amend carried. Voting "yes" – all members of the governing body with the exception of Mayor Orr and Mr. Laybourn voting "no". Ms. Lockman explained upon inquiry the dollar amount available in reserves includes purchase price of this property. Further comments included: support for the amendment, continued negotiations with Seller and appreciation for everyone who has been involved with the agreement. Main motion as twice amended carried. Voting "yes" – all members of the governing body with the exception of Mr. Laybourn and Mr. Luna voting "no". (#7032)

[CA] Memorandum of Agreement between the City of Cheyenne and Preserve Historic Wyoming, a Wyoming Nonprofit Organization, to remediate hazardous substances to renovate the building located at 1605 Central Avenue, Cheyenne, Wyoming, in an amount not to exceed \$384,000.00. Motion (per Consent Agenda) carried. (#7033)

[CA] Grant agreement between Memorial Hospital of Laramie County d/b/a Cheyenne Regional Medical Center and the Office of Youth Alternatives (CRMC Grant) – referred to Finance Committee.

[CA] Contract between the City of Cheyenne, Youth Alternatives and the Laramie County Community Juvenile Services Joint Powers Board (Wyo. Dept. of Family Services Grant) – referred to Finance Committee.

[CA] Grant agreement between Memorial Hospital of Laramie County d/b/a Cheyenne Regional Medical Center and the City of Cheyenne Police Department for the implementation of a program to identify health priorities that will benefit the community and aligns with community needs assessment (CRMC Grant) – referred to Finance Committee.

[CA] Real Property Lease No. 8-09466 between the State of Wyoming, Department of Administration & Information, General Services Division, and the City of Cheyenne, for the lease of parking spaces located at the Cox Parking Structure to be used by the State (Revenue to the City) – referred to Finance Committee.

[CA] Professional Services Agreement between the City of Cheyenne and Burns and McDonnell, Bloomington, MN, for the Landfill Front Entrance and Scale House Project (Solid Waste Fund) – referred to Finance Committee.

[CA] Memorandum of Understanding between the City of Cheyenne, Cheyenne Police Department, and Laramie County School District No. 1 for school resource officers for the 2019-2020 school year and summer school 2020 (Revenue to the City) – referred to Finance Committee.

[CA] Agreement between the City of Cheyenne and the Cheyenne Animal Shelter/Services for animal control and animal shelter services (Economic Support funds) – referred to Finance Committee.

[CA] Human Services Agreement with United Way of Laramie County to provide services to create the Human Service Advisory Committee (2019-2022 1% Sales Tax) – referred to Finance Committee.

[CA] Human Services Agreement with United Way of Laramie County to provide services to various community programs (2019-2022 1% Sales Tax) – referred to Finance Committee.

[CA] Contract between the City of Cheyenne and Peak Wellness, Alcohol Receiving Center, to provide alcohol and drug detoxification services to individuals (General Fund) – referred to Finance Committee.

[CA] Contract between the City of Cheyenne and Cheyenne Housing Authority to provide supportive senior services (General Fund) – referred to Finance Committee.

[CA] Contract between the City of Cheyenne and Safe Harbor to provide a safe and secure environment to families who have been affected by abuse (General Fund) – referred to Finance Committee.

[CA] Lease agreement between the City of Cheyenne and the Cheyenne Airport Board for land to be used for the Weed and Pest Division (2019-2022 1% Sales Tax) – referred to Finance Committee.

[CA] Lease agreement between the City of Cheyenne and the Cheyenne Airport Board for land to be used for Community Recreation and Events softball and baseball fields (2019-2022 1% Sales Tax) – referred to Finance Committee.

[CA] Lease agreement between the City of Cheyenne and the Cheyenne Airport Board for land to be used for Street and Alley and Compost operations (2019-2022 1% Sales Tax) – referred to Finance Committee.

[CA] Professional Services Agreement between the City of Cheyenne, Engineering Department and Wilson & Company, Inc., Denver, CO, for the design of the Reed Avenue Rail Corridor Design Project (Specific Purpose Sales Tax) – referred to Finance Committee.

[CA] Consideration to purchase signaling infrastructure power line relocations from the Union Pacific Railroad Company. Motion (per Consent Agenda) carried.

[CA] Request to expand seating area for consumption relating to retail liquor license held by Alf in Wyoming Enterprises, LLC d/b/a Alf's Pub & Package Liquors, 1622 E. 19th St., Cheyenne, Wyoming. Motion (Per Consent Agenda) carried.

Appointment of Ashley Miller as Assistant City Treasurer (Board of Public Utilities) for the City of Cheyenne. Mayor Orr congratulated Randy Hays on his retirement and provided history on the Assistant City Treasurer appointment. Mr. Roybal moved to approve, seconded by Mr. Shanor. Further appreciation expressed for Mr. Hays. Motion carried. Voting “yes” - all members of the governing body with the exception of Mayor Orr who did not vote (mayoral appointment).

Appointment of Breck Collier to the Cheyenne Downtown Development Authority Board. Mr. Shanor moved to approve, seconded by Mr. Case. Motion carried. Voting “yes” - all members of the governing body with the exception of Mayor Orr who did not vote (mayoral appointment).

There being no further business to come before the governing body, the meeting was officially adjourned at 7:09 p.m.

Submitted by,

Kristina F. Jones, City Clerk

This notice is available in alternative, accessible formats upon request.

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